

Historic Litchfield

✦ ✦ ✦ ✦ ✦ ✦

Address Delivered at the Bi-Centennial
Celebration of the Town of Litchfield,
August 1, 1920

✦ ✦ ✦ ✦ ✦ ✦

By Hon. Morris W. Seymour, LL.D



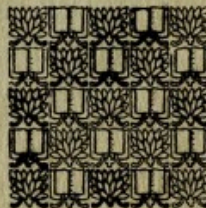
Historic Litchfield

✦ ✦ ✦ ✦ ✦ ✦

Address Delivered at the Bi-Centennial
Celebration of the Town of Litchfield,
August 1, 1920

✦ ✦ ✦ ✦ ✦ ✦

By Hon. Morris W. Seymour, LL.D



The Project Gutenberg eBook of Historic Litchfield

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Historic Litchfield

Author: M. W. Seymour

Release date: September 28, 2021 [eBook #66404]

Most recently updated: October 18, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/66404

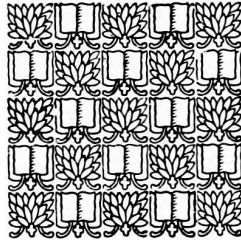
Credits: Charlene Taylor, Donald Cummings and the Online Distributed Proofreading Team at <https://www.pgdp.net>
(This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK HISTORIC
LITCHFIELD ***

Historic Litchfield

Address Delivered at the Bi-Centennial
Celebration of the Town of Litchfield,
August 1, 1920

By Hon. Morris W. Seymour, LL.D



PRIVATELY PRINTED
1920

*“Let us now Praise Famous Men—
Our Fathers that begat us.”*
—*Ecclus: 44; 1.*

Fellow Citizens, Ladies and Gentlemen:

An attempt to epitomize the events of two hundred years in an hour's time is no easy task in any circumstances. It becomes doubly difficult when those years are filled with the stirring events that have marked the history of this community. I do not hesitate to say that no town of an equal number of inhabitants in this or any other country has played so conspicuous a part in the affairs of a state or nation as has the town whose two hundredth birthday we celebrate. Its very conception originated in a historic tragedy. Years before the settlement of the town, our State officials became convinced of the hostility of the English Government and its determination to revoke our charter. To frustrate this design, in part, and to prevent the “Western Lands,” as they were called, which embraced the territory of this town—in the words of the enactment—“From falling into the grasp of Sir Edmund Andros and permitting him to enrich himself and his minions,” the Legislature, on January 26, 1686, ordered the sale of those lands to the Towns of Hartford and Windsor. A few years later, there dropped from our Royal Oak, in whose bosom safely lay concealed our hidden charter, an acorn, which by reason of this action of the legislature, sprouted and blossomed forth as the Patent of this Town.

A company was organized in 1718, upon the petition of Lieutenant John Marsh and Deacon John Buel, and they, with others, were incorporated by the General Assembly at its May Session, 1719, to settle a town called Litchfield on the “Western Lands” at Bantam. These original settlers were residents of and men of affairs in the Towns of Wethersfield, Hartford, Windsor, Lebanon and Farmington.

Among the list of settlers appear names that we hear uttered almost daily in our streets and today are fortunate to have some of their descendants still

with us—Marsh, Buel, Woodruff, Webster, Griswold, Gibbs, Stoddard, Sanford and many others.

The plan of the village has never been materially changed. The settlers who had the first choice selected the southern portion of the town along the Bantam River and Little Pond, presumably because of the natural meadows which gave them hay for their cattle without waiting the slow process of clearing the land,—the first pitch was the upper corner of South Street and Gallows Lane (then called Middle Street).

Following the usual custom of our Puritan forefathers, the original proprietors here built a church and then a school house. From those two sources,—that church and that school—it is not claiming too much to say there emanated two of the greatest reforms the world has ever known. The temperance movement, which has culminated in the enactment of the Eighteenth Amendment to the Constitution, and which has now been declared by the Supreme Court at Washington a binding feature throughout the length and breadth of our land, seems to have been initiated here.

It has been stated that the very first Temperance Society in the world originated in an organization in Litchfield by an association of our citizens in May, 1789, and a quite thorough examination of the subject would seem to verify the truth of this statement. There certainly was a noble collection of gentlemen here at that time who did all they could to push forward the temperance reform.

The splendid results did not fully appear until the settlement of Dr. Lyman Beecher who—though his attack in the first instance was from a different angle, and directed toward the clergymen themselves—did perhaps for that very reason the most effective work. Dr. Beecher's attention was first called to the temperance question through his attendance on the Convocation of Ministers at the adjoining towns of Plymouth and Sharon. He was shocked both at the amount of liquor consumed and its effect on the ministers themselves. It was his fervent zeal, his sermons and advocacy of the cause that resulted in the abolition of liquor in ministerial circles, and called the attention of good citizens the world over to the evils of intemperance. The Massachusetts Temperance Society, one of the best conducted and strongest in the country, is said to have been the direct result of this Litchfield movement, having been incorporated just a year after Dr.

Beecher's philippic. Among the many lessons of the late war, none have impressed the people more than that in a certain sense we are our brother's keeper,—that rum and thrift do not travel together—that “Dutch” courage cannot compare with moral courage. Think of this, my fellow-citizens! Within the records of yonder Court House there is a receipt showing that my own grandfather—when High Sheriff of this county—purchased with the money of the State seven gallons of rum for the refreshment of five of the highest judicial officers of the State during five days' session of the Court of Errors! More than a quart per judge per day! Is it to be wondered at that some of their opinions at times seemed muddled?

The second great reform which emanated from this town and church, the schools established here, and the pure air of freedom which we breathe, was the doom of slavery, which was sounded when Harriet Beecher Stowe wrote “Uncle Tom's Cabin.” John Brown was born just over the line in Torrington in 1800,—no great distance from the Beecher Homestead. A man with a modern rifle, standing on the Grant farm, could have hit either the Beecher Homestead or the John Brown birthplace. In the words of Oliver Wendell Holmes:

“All through the conflict up and down,
Marched Uncle Tom and old John Brown,
One ghost, one form ideal;
And which was false and which was true,
And which was mightier of the two,
The wisest sibyl never knew,
For both alike were real.”

The crowning victory of our Civil War will ever link the shores of the Appomattox with the Hills of Litchfield,—and to make the chain stronger, General Grant, though not born here, was descended from a family that for many years lived in and took a great interest in the affairs of this town.

Fortunately for me, the history of the Litchfield Law School has been brought before you by a man we all honor and who did ample justice to the subject, but, as a loyal son of Litchfield and a lawyer, I am proud of the fact and wish no one to forget that here was established and carried on for many years not only the first law school in the English-speaking world, but one

that has for all time impressed its methods on the legal profession. It is true that at Oxford, Cambridge and other universities law lectures were delivered before the establishment of the Litchfield Law School, but merely as a part of the polite education of a scholar. There was little attempt to teach the eternal principles of the law or their practical application. The influence of the Litchfield Law School was felt throughout the world, but of course most of all in our own country. Here the scholars both attended lectures and recited the lessons they had learned. This it was that distinguishes it as the first Law School, a school where lessons were taught. That Law School, Miss Pierce's School, and the Morris Academy did much to educate our people. The late Chief Justice Seymour once said that when he entered Congress—as late as 1850—he was met and welcomed by over thirty members of the House, who had graduated at the Litchfield Law School or had married women who had graduated at Miss Pierce's School.

The Morris Academy, under the direction of Captain James Morris, a soldier who distinguished himself at the capture of Cornwallis, also added materially to the education, interest and influence of the community.

Naturally all the ecclesiastical and religious sentiment of the community centered around the First Ecclesiastical Society, the Congregational Church, but as the inhabitants increased other churches were formed.

Quite early the Episcopalians had the services of a missionary here, but in 1745, Mr. John Davies, an Englishman who had settled in the town and was deeply attached to the principles of the established Church of England, gathered around him the people of the neighborhood and organized St. Michael's Parish, and donated to it a piece of land on which subsequently a church was erected. From that day to this, not only Litchfield, but New Milford has largely benefited by his generosity and the interest of his family.

The late Bishop Davies of the Diocese of Michigan, and his son, the Rt. Rev. Thomas F. Davies of the Diocese of Western Massachusetts, have always taken a great interest in Litchfield and have often visited here reviving their family interest in the place of settlement of their ancestors in this country.

St. Michael's Church has had the good fortune of having Rectors distinguished for their piety and ability. Perhaps the Rev. Henry R. Hudson,

the distinguished Shakespearian scholar, was from a literary point of view, the most distinguished. He was Rector of the church for two years and subsequently became Shakespearian Professor at Harvard University.

The Roman Catholic Church, St. Anthony's Parish, was started largely through the kindly benevolence and gifts of Miss Julia Beers, a daughter of the Hon. Seth P. Beers. Late in life she became deeply interested in Roman Catholicism, and by her social influence and her many devoted friends in the town, she gave the Parish an influence that it has ever since retained.

Our Methodist Brethren ever since 1837 have maintained services here, and have always had an influential and devoted congregation.

Upon the settlement of the town, our forefathers seem to have pursued a wise and friendly course towards the Indians, and on the whole—notwithstanding a few unpleasant instances—there were no serious conflicts.

The community seemed to have had no part in the first French and Indian War of 1744, commonly called Queen Anne's War. On the dispersion of the inhabitants of Acadia, so graphically described by the historian Bancroft and the poet Longfellow, some four hundred of these unfortunate refugees were sent to Connecticut, and by our Legislature, on January 21st, 1755, distributed among the different towns of the State. Of these a number were sent to Litchfield, as appears of record, and some became permanent inhabitants of the town.

In the last French and Indian War, beginning in 1755, and continuing until 1763, the town took not only a considerable but a distinguished part.

By reason of the death of Colonel Williams at the battle of Lake George, the command of his regiment fell on Colonel Whiting, then of the Town of New Haven, but subsequently removing to this town. He distinguished himself by great coolness, skill and bravery. Colonel Whiting's orderly book and sword were valued possessions of the Whiting family, who, until within a year, have been residents of the town. The Litchfield Company which, under the command of Captain Archibald McNeill of Colonel Whiting's Regiment—although not composed exclusively of inhabitants of the town—was enlisted in this immediate vicinity, and its roster contains the names of distinguished men from this town, members of whose families

are still living with us—such as the Marshes, Baldwins, Smiths, Gibbs, Catlins, Warners, Lords, Stoddards, Beebes, Osborns and Bissells—with many others.

Dr. Timothy Collins, who had been the first Pastor of the Congregational Church of Litchfield, was appointed as one of the physicians and surgeons of this Connecticut Regiment.

Of the part taken by the town in the Revolutionary War, the difficulty is in determining what to omit. Without instituting comparison, it can safely be said that Litchfield did—as she has always done—her full duty. Circumstances contributed somewhat to the prominence of the town. The control of Long Island Sound and the southern shores of our state by the British ships and troops necessarily compelled the use of the northern route between New England and the western and southern parts of our country. General Washington, when desirous of a consultation with Count Rochambeau at Wethersfield, had almost of necessity to pass through Litchfield. When a place of safety for provisions, stores and prisoners was required, what better situation could be found than among our secluded hills? So, when the Royal Governor—Franklin of New Jersey—and Matthews, Mayor of New York City, were arrested, and Governor Trumbull was requested to detain them, he immediately sent them to Major Moses Seymour, who was then acting not only as Commissioner of Supplies but of prisoners as well—to be detained, and the original warrant for the detention of Mayor Matthews is now in the possession of Judge Woodruff.

None of the Colonies' soldiers west of the Connecticut River was ordered to Boston at the time of the Lexington Alarm. Only those east of the river received orders to march, while those on the west side were generally instructed to await orders. At the battles of Lexington, Concord and Bunker Hill, if any of our townsmen participated, it was as individuals—as they did when Arnold marched to Quebec. But the most thrilling event of this time was undertaken by a Litchfield man—born in a house still standing if tradition is to be believed—Colonel Ethan Allen, who was in command of the troops that captured Ticonderoga, and who demanded the surrender of the fortress,—“In the name of the Great Jehovah and the Continental Congress,” nearly fourteen months before the Declaration of Independence.

Before the War, Connecticut had no cavalry regiment, as such. Each regiment of infantry had a troop of horse attached to it, consisting of one company. Soon after the beginning of the War, these companies were consolidated in a cavalry regiment and placed under the command of Colonel Elisha Sheldon—which regiment soon became the pride of the army, and was subsequently reorganized as the United States First Dragoons.

The conspicuous part which that regiment played in the War is of common knowledge and need not be dwelt upon. When Washington needed protection in his retreat from Long Island and through the Jerseys, it was this regiment which acted as rear guard and protected his retreat through the state. Colonel Sheldon was a distinguished and valuable citizen of the town, and I have reason to believe that the house in which he lived is still standing.

The pulling down of the equestrian statue of George III on the Bowling Green in New York and the bringing of it to Litchfield to be moulded into bullets by the fair women of our town is an incident too well known to require special mention, but it has always seemed to the writer to have a semi-comic as well as a tragic side. A British soldier maimed by a bullet moulded by Yankee Rebel women out of a statue erected to honor his King, must have had mingled feelings; his loyalty to the King prohibited his having any ill-feeling toward the statue, but his respect for the ladies of Litchfield must have been considerably lowered.

When the importance of defeating General Burgoyne in his attempt to separate New England from New York and the western and southern states became apparent, General Schuyler sent word to General Wolcott to hasten forward to Albany as many as possible of the Connecticut troops. General Wolcott with his usual promptness without waiting instructions from Gen. Washington or Gov. Trumbull, ordered all the Connecticut troops west of the Connecticut River to proceed immediately to Albany. The Litchfield Troop of Horse, under Major Moses Seymour, and the Infantry Company, under Captain Beebe, marched immediately, and participated in the Battles of Stillwater, Bemis Heights and the final victory at Saratoga, which victory Cressey—in his enumeration of the famous battles of the world—includes as one of the most important.

There is an interesting and prophetic incident related of the banquet to which General Gates invited General Burgoyne and his officers, after the surrender, at which General Burgoyne in response to a request for a toast, after some hesitation, arose and said: "I give you England and America against the world."

At the attacks on Danbury and New Haven, our Litchfield soldiers rushed to the assistance of both places. From Danbury down to the place of debarkation at Compo Beach, they pursued, attacked and harrassed Tryon's troops, capturing and killing many of them.

Colonel Benjamin Tallmadge, aide de camp to General Washington, and one of the most distinguished officers of the Revolution, deserves more attention than we have time to give to his many valuable services. His part in the trial and execution of Major Andre called the attention of the British, French and American commanders to his every action, and excited universal approbation. His firmness, benevolent judgment and kindly care of Andre, and his irresistible outburst of tears as that splendid British officer swung into eternity from the ignominious gibbet, gave complete evidence of the tenderness of his disposition—but which could not swerve his fidelity to duty. After the War he returned to his home here, and shortly after was elected to Congress where again he rendered valuable services to the nation.

In the War with Mexico, although New England was not particularly enthusiastic in its prosecution, Connecticut did its part. It was a Litchfield boy, Henry W. Wessells, subsequently became a General in the Regular Army, who—while a brave Connecticut Colonel was pulling down the Mexican flag and raising the Stars and Stripes over the Mexican stronghold, the fortress of Chapultepec—stood beside him and protected him from assault.

In the Civil War, our town did its full duty. The Connecticut Nineteenth Regiment was recruited, encamped and trained on Chestnut Hill, and marched away to join the Army of the Potomac under command of our townsman, Colonel Leverett W. Wessells. No finer body of men ever left the State. At Manassas, Cold Harbor, Spottsylvania, Winchester, Hanover Court House, Cedar Creek, City Point, Hatchet's Run, Petersburg and Fisher Hill, it earned a glorious and well-deserved reputation for bravery and faithful service. It was early transferred into an artillery regiment, the

Second Connecticut Heavies, as it was called, and placed under the command of Colonel E. S. Kellogg, and subsequently R. S. MacKenzie of the Engineers. Under their command the Second Connecticut Heavies became one of the most useful and distinguished regiments of the Civil War. Colonel Kellogg was killed while attacking General Longstreet's veteran corps at Cold Harbor. Of our citizens, the names connected with this Regiment that comes to one's mind most intimately are the beloved Clerk of the Superior Court, Dwight C. Kilbourn, of Hinsdale, Shumway, Bissell, Smith, Stone, Morse, Wadhams, Plumb, Wheeler and many more we knew and loved.

In the Spanish War, when the American Fleet was attacking Manila and the German ships of war seemed to be intentionally blocking its way, it was our fellow-citizen, Rear Admiral Colvocoresses, loved and respected by all of us, who ably assisted Admiral Dewey—both equally willing to fight Germany if necessary. It would perhaps have been as well for the world had our war with Germany begun then and there.

Though this is a sketch dealing with Litchfield's past, I would not be true to its traditions if I omitted to mention the shining glory of those boys of ours who laid down their lives in France for their country, for democracy and the good of mankind in the World War—Morgan, Weir, Devines, Jefferies, Catty, Cornwall, Donahue, Guinchi, Sherry and Zarotti. I like to think it was the spirit of Litchfield and their loyalty to the best traditions of this town that made them "go over" and "carry on" so nobly.

As brilliant and effective as were the efforts of our forefathers on the battlefields of the Republic, the record of their civic achievements in no way fades by comparison.

Connecticut sent our fellow-citizen Oliver Wolcott, to sign the Declaration of Independence, and after his return from Congress he was elected Governor of the State and served for two years. When Presidents Washington and Adams needed a man as Secretary of the Treasury of the United States, to assist Alexander Hamilton in straightening out the financial affairs of the nation after the Revolution,—they turned to Litchfield and selected Oliver Wolcott, Jr., son of the Governor, for that important duty, who on his return was elected Governor, of the State, a position he occupied some ten years. The only other Governor of the State

from Litchfield was the late Charles B. Andrews, at one time Chief Justice of the State.

Connecticut has chosen five Chief Justices of the State from residents of this town,—Andrew Adams, Tapping Reeve, Samuel Church, Origen S. Seymour and Charles B. Andrews. Eight Justices of our Superior Court have also come from our town. Two United States Senators, ten Members of Congress, seven Members of the Council, besides numerous Chief Justices and Judges of the County Court, with ten High Sheriffs of the County.

When the State of New York desired a man to associate with DeWitt Clinton on the construction of the Erie Canal, they selected Henry Seymour formerly of Litchfield, then a resident of Utica.

A complete list of the important offices filled by Litchfield men would take too long to recite.

The social life of the town could hardly be otherwise than agreeable and attractive. Litchfield has ever welcomed the refined educated person, and extended to him or her its warmest welcome. The heads of its families were not only well educated men and women, but usually occupied high social position in the state and nation. The young people in attendance at Miss Pierce's, the Law School and the Morris Academy were of the same high type collected from all the various States of the Union. There was enough serious work to occupy their time and give zest to their hours of rest and recreation. Mrs. Vanderpoel in her delightful book, "A Pioneer's School" has collected many graphic descriptions of the amusements and pleasant times that they enjoyed.

Samuel Goodrich, writing under the name of Peter Parley, has this to say, "Litchfield Hill was in fact not only one of the most elevated features in the physical formation of the State, but one of the focal points of literature and enlightenment." He goes on to tell of an incident in reference to Dr. Lyman Beecher, which speaks volumes for the common sense of the good old Doctor: One evening Dr. Beecher was returning home, having in his hand a volume of Rees' Encyclopedia which he had just purchased from the book store. On his way he met a skunk and threw the book at him, upon which the animal retaliated with such effect that when the Doctor reached home he was in a very shocking plight. Sometime after, having been bitterly assailed

and abused by an opponent, his friends advised him to reply. “No,” said the Doctor, “I once discharged a quarto at a skunk and I got the worst of it. I do not wish to try it again.” The witticisms of the town were proverbial, and did time permit to repeat, though often before repeated, would be enjoyable. To me the reply of Senator Tracy to Senator Randolph of Virginia has always seemed a nearly perfect specimen of wit. Senator Randolph hastily called Senator Tracy to the window of the Senate Chamber to see some of his “Connecticut Constituents.” Senator Tracy came to the window as a drove of mules was being driven by. Turning to Senator Randolph he said, “Oh yes, they are going down to Virginia to teach school.”

There is also that delightfully witty repartee of the Senator which so gallantly described for all time the ladies of Litchfield. Mr. Lister, the then British Ambassador, who was thoroughly English in his ideas, said to General Tracy, “your countrywoman—Mrs. Wolcott—would be admired even at St. James.” “Sir,” retorted Senator Tracy, “she is admired even on Litchfield Hill.”

My friends, I have mentioned only a few of the men whose character and attainments have contributed to the upbuilding of this town, of our state and of our nation. Not to forgetfulness of their worth but to lack of time must omissions be attributed. Many are the names among our forefathers that set an example of Godly living, loyalty and patriotism which never can be surpassed. May we and our descendants be as faithful when called to serve our God, our country and our town.

Transcriber's Note:

Archaic and variable spelling has been preserved.

*** END OF THE PROJECT GUTENBERG EBOOK HISTORIC
LITCHFIELD ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.